



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

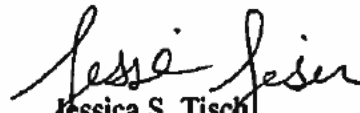
Re: Disciplinary Case No. 2023-28482 / PODS Case No. C-031658 regarding
Sergeant Jorge Rodriguez

Date: November 5, 2025

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved the allegation that Sergeant Rodriguez unlawfully arrested an individual. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, Sergeant Rodriguez will receive Training, as negotiated by CCRB.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



March 26, 2025

The Honorable Jessica S. Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Sergeant Jorge Rodriguez (Tax Reg #957094, DADS #2023-28482)

Commissioner Tisch:

A negotiated settlement of a dismissal of the charge along with a penalty of Training was agreed upon and signed by all parties on January 31, 2025. Assistant Deputy Commissioner Paul M. Gamble endorsed the negotiated settlement on March 11, 2025.

On April 21, 2022, Sergeant Rodriguez and his partner were speaking with some civilians outside 2140 Seward Avenue in the Bronx. An individual named [REDACTED] exited 2140 Seward and started filming the officers while standing in the doorway. Sergeant Rodriguez told Mr. [REDACTED] a number of times that he would give him a summons if he did move away from the door. Mr. [REDACTED] refused to do so, and Sergeant Rodriguez placed him in handcuffs and arrested him for disorderly conduct. The arrest of Mr. [REDACTED] was unlawful as the actions of Mr. [REDACTED] did not constitute disorderly conduct.

For the charge of an enforcement action involving an abuse of authority, the disciplinary matrix lists a mitigated penalty of the forfeiture of ten (10) vacation days, a presumptive penalty of the forfeiture of twenty (20) vacation days, and an aggravated penalty of Termination.

The negotiated settlement deviates from NYPD disciplinary guidelines as to an enforcement action involving an abuse of authority for the following reasons:

The basis for this recommendation is Sergeant Rodriguez's ten years of service as well as his rating of 9 out of 10, well above standards, in his most recent evaluation.

Respectfully submitted,

Brian Arthur
Brian Arthur, Esq.
Deputy Chief Prosecutor
Civilian Complaint Review Board